

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Stephanie Dukich	Team: Squad #08	CCRB Case #: 202202614	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☐ Injury
Incident Date(s) Saturday, 04/23/2022 8:02 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 10/23/2023	Precinct: 111		
Date/Time CV Reported Mon, 04/25/2022 8:47 AM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Mon, 04/25/2022 8:47 AM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. PO Walter Feit	31577	940131	111 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. PO Radame Lopez	30479	965285	111 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . PO Walter Feit	Off. Language: Police Officer Walter Feit made remarks to § 87(2)(b) based upon his mental disability.	A . Substantiated
B . PO Walter Feit	Discourtesy: Police Officer Walter Feit spoke discourteously to § 87(2)(b)	B . Substantiated

Case Summary

On April 25, 2022, § 87(2)(b) filed this complaint via the Civilian Complaint Review Board's Call Processing System.

On April 23, 2022, in the vicinity of § 87(2)(b) in Queens, at approximately 8:02 p.m., § 87(2)(b) called 911 to file a report against her husband, who let their 27-year-old son, § 87(2)(b) drink alcohol despite his physical and mental disabilities. Police Officer Walter Feit and Police Officer Radame Lopez, both of the 111th Precinct, responded to § 87(2)(b) residence. While speaking with § 87(2)(b) PO Feit asked him, "Are you mentally retarded?" (**Allegation A: Offensive Language, substantiated and Allegation B: Discourtesy-Word, substantiated**). The officers prepared a Domestic Incident Report and left the location.

BWC from PO Lopez and PO Feit was obtained by the investigation (Board Review 01).

Findings and Recommendations

Allegation (A) Offensive Language: Police Officer Walter Feit made remarks to § 87(2)(b) based upon his mental disability.

Allegation (B) Discourtesy: Police Officer Walter Feit spoke discourteously to § 87(2)(b)

§ 87(2)(b) testified on April 27, 2022, that on April 23, 2022, at approximately 8:02 p.m., she called 911 and requested the police to assist with a domestic incident. Over the phone, she stated that she wanted officers to file a report for her because her ex-husband, § 87(2)(b) forced her disabled son, § 87(2)(b) to get drunk. Given that § 87(2)(b) is diagnosed with Tourette syndrome, OCD, DHD, a metabolic disorder, and Raynaud's disease, alcohol can be detrimental to his health.

PO Feit and PO Lopez responded to § 87(2)(b) address, § 87(2)(b) in Queens, and she spoke with them in her doorway. § 87(2)(b) was in the living room by the door, while her other son, § 87(2)(b) was in his room. At first, § 87(2)(b) spoke with PO Lopez. She let him know that § 87(2)(b) went to get a drink with his father, who forced him to have another drink. She did not relate how much he drank but told him that he had consumed alcohol. She mentioned that § 87(2)(b) has a severe learning disability, due to which his judgement and focus is altered. § 87(2)(b) may have told the officers the diagnosis of his disability. § 87(2)(b) explained that it is dangerous for § 87(2)(b) to drink alcohol, then go home unaccompanied, because he risks getting lost or hurt. § 87(2)(b) did not ever tell the officers that her son is "mentally retarded" or refer to him as such. PO Feit intervened and asked how old § 87(2)(b) is and § 87(2)(b) told him that he is 27 years old, to which PO Feit responded that he is allowed to consume alcohol.

§ 87(2)(b) spoke with the officers for a few minutes and PO Feit asked to see § 87(2)(b) § 87(2)(b) stated that he did not appear to be inebriated, but was acting "tipsy" in the way that he talked. § 87(2)(b) introduced himself and said something along the lines of, "I'm § 87(2)(b) PO Feit said something that § 87(2)(b) could not recall, then asked her son, "Are you mentally retarded?" § 87(2)(b) stated that this was either the first or the second thing that PO Feit asked § 87(2)(b) did not respond, but stood there with a blank expression on his face. § 87(2)(b) took offense to this statement, as she believed that PO Feit offended § 87(2)(b) in using the term "retarded." PO Feit then asked, "You just had a couple of beers with your father?" and § 87(2)(b) answered "Yeah, two or three." § 87(2)(b) told PO Feit that § 87(2)(b) cannot properly answer his questions because of his disability. PO Feit asked him

one or two other questions, after which § 87(2)(b) went inside. § 87(2)(b) son spoke with the officers for less than ten minutes.

After § 87(2)(b) son went inside, § 87(2)(b) filled out a complaint report against her ex-husband. Once § 87(2)(b) filled out her paperwork, PO Lopez and PO Feit drove away. (Board Review 02).

The investigation did not obtain a statement from § 87(2)(b) due to the nature of his disability.

PO Feit's BWC begins with him driving a police vehicle. He exits at 00:47 and approaches a residential house. § 87(2)(b) comes out of the house at 1:20 and says that she wants to file a report against her old husband. She says that her son has disabilities, including neurological, "metabolical," and physiological problems, due to which he should not be drinking. PO Lopez asked whether the father dropped him off drunk and § 87(2)(b) explains that the father came, picked him up, then left him at the bar drunk, so he walked home. At 2:20, PO Feit said, "He's 30 though, right?" § 87(2)(b) says that her son is 27 and at 2:30, she explains that her son has OCD and Tourette's. PO Feit asks at 2:40 if he is considered an adult and § 87(2)(b) responds that he is an adult. PO Feit responds that he is allowed to drink. At 2:50, PO Lopez asks § 87(2)(b) if she had any interaction with her ex-husband on that day and she stated that she did not. PO Lopez asks to see her son. At 3:05, she calls for § 87(2)(b) and tells him to come here. At 3:12, § 87(2)(b) comes out of the house and PO Lopez asks if he was at the bar with his father. § 87(2)(b) responds that he was and explains that it is not a big deal. He mentions that he consumed three drinks. At 3:50, PO Feit explains that there is going to be no follow-up or punishment for this because § 87(2)(b) is an adult who is allowed to drink.

At 4:36, PO Feit asks § 87(2)(b) "Sir, what's your learning disability?" § 87(2)(b) begins to say "Well, I uh, have," though PO Feit interjects at 4:41 and asks, "Are you mentally retarded?" At 4:43, § 87(2)(b) responds, "No, absolutely not." At 4:44, § 87(2)(b) asks PO Feit, "Did you just ask him if he is mentally retarded?" and PO Feit responds, "Yeah, it's a medical condition." § 87(2)(b) says that it is not appropriate to tell her son that he is mentally retarded.

§ 87(2)(b) says that she is going to take the issue to court to stop § 87(2)(b) father from putting him in harm's way. § 87(2)(b) says, "It's fine, it's totally fine." At 5:42, § 87(2)(b) says, "She likes to exaggerate," and § 87(2)(b) responds, "That's your OCD." PO Lopez hands her a complaint report and says that they will be in the car while she fills it out. PO Lopez and PO Feit return to their vehicle at 7:24.

At 14:08, § 87(2)(b) approaches and they step out of the vehicle. PO Feit takes her report. § 87(2)(b) asks him for his name, and he tells it to her. § 87(2)(b) tells PO Feit that she is going to complain, because what he said to her son was inappropriate. § 87(2)(b) explains why she thinks this incident should be investigated, and PO Feit says at 15:44, "Well, he's not deemed mentally retarded." § 87(2)(b) tells him that it was offensive that he asked her son this. PO Feit responds at 15:50 that this is a medical term, and that her son did not seem to take offense to it. At 16:45, § 87(2)(b) says that she is done with the conversation and PO Feit returns to his vehicle, where PO Lopez is already sitting.

At 33:59, PO Feit exits the vehicle. PO Lopez is already at the door and hands the report to § 87(2)(b). They both enter the vehicle at 34:22 and drive away from the location (Board Review 01).

PO Feit testified on July 25, 2022, that on April 23, 2022, he responded to a job at the location with PO Lopez. The job came over as a domestic dispute, in which § 87(2)(b) wanted to make a complaint against her ex-husband for taking her 29-year-old son, § 87(2)(b) out to dinner and letting him drink alcohol. When they arrived, § 87(2)(b) stood outside her house, which is where they spoke with her. § 87(2)(b) stated that her son had a learning disability, though PO Feit did not recall what that learning disability was. § 87(2)(b) did not refer to her son or his mental capacity as “retarded” at any point when explaining his disabilities. § 87(2)(b) told the officers her son’s age, though PO Feit was familiar with her son from previous instances in which § 87(2)(b) filed complaints against her ex-husband.

At some point, PO Lopez asked to see her son to see whether he was intoxicated. § 87(2)(b) came outside and told the officers that it was not a big deal and that his mother was exaggerating. He did not appear excessively intoxicated and told the officers that he did not have too much to drink. PO Feit then asked § 87(2)(b) if he was mentally “retarded” to determine whether he was mentally fit to drink. He did not use the term “learning disability,” because somebody with a learning disability is mentally fit to drink, and thus he was exploring other reasons due to which he may be unfit to drink. If her son was “retarded,” for example, then he would be unfit to drink. There was no other reason that § 87(2)(b) asked § 87(2)(b) if he was “retarded.”

§ 87(2)(b) responded by telling PO Feit that he is not “retarded.” § 87(2)(b) took offense to the statement. PO Feit did not recall what exactly she said, but PO Feit could tell that she was upset he used this term. PO Feit helped prepare a Domestic Incident Report for § 87(2)(b) though he let her know that he could not prepare a complaint report for her because legally, § 87(2)(b) is allowed to drink (Board Review 03).

Merriam-Webster dictionary defines the word “retarded” as either “affected by intellectual disability” or “very stupid or foolish,” both of which are considered “dated, now offensive” (Board Review 04).

Oxford Dictionary defines “retarded” as an offensive and dated definition of “less advanced in mental, physical, or social development than is usual for one’s age.” It can also mean “very foolish or stupid” (Board Review 05).

Patrol Guide Procedure 200-02 states that members of service should “Value human life, respect the dignity of each individual, and render [their] services with courtesy and civility” (Board Review 06).

Neither § 87(2)(b) nor § 87(2)(b) used the word “retarded” to refer to § 87(2)(b) nor to describe his mental disabilities. PO Feit stated that the only reason he asked § 87(2)(b) whether he was “retarded” was to determine whether he was fit to drink. Both Merriam-Webster Dictionary and Oxford Languages define “retarded” as both an offensive and dated adjective for someone “less advanced in mental, physical, or social development than is usual for one’s age.”

§ 87(2)(g) it is recommended that **Allegations A and B** be closed as **substantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party.
- This is the first CCRB complaint to which § 87(2)(b) has been a party.

- PO Feit has been a member of service for 16 years and has been a subject in five CCRB complaints and twelve allegations. Five allegations of discourtesy have been pleaded and substantiated, unfounded, and unsubstantiated against PO Feit. Specifically, in 201400382, it was alleged and unsubstantiated that PO Feit spoke discourteously to individuals. In 201803033, it was alleged that PO Feit spoke discourteously to individuals, though the complaint was closed complainant uncooperative. 202008209 contained two allegations of discourteous language against PO Feit; one was closed as unfounded, while the other, in which PO Feit asked a civilian whether she spoke English, was substantiated. Command Discipline A was recommended by the Board. The NYPD penalty is not listed. Lastly, in 202202873, an allegation of a discourteous action was made against PO Feit, which is still open.

Mediation, Civil, and Criminal Histories

- On April 29, 2022, this case was sent to mediation and on May 27, 2022, the case was returned to investigation as § 87(2)(b) changed her mind and decided to have this complaint investigated. She did not provide the Mediation Unit with a reason for why she changed her mind.
- As of July 27, 2022, a Notice of Claim FOIL request was filed with the New York City Office of the Comptroller (Board Review 07). The results are pending.

• [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad: 8

Investigator: <u>Stephanie Dukich</u>	Inv. <u>Stephanie Dukich</u>	<u>July 27, 2022</u>
Signature	Print Title & Name	Date

Squad Leader: <u>Ethan De Angelo</u>	IM <u>Ethan De Angelo</u>	<u>July 27, 2022</u>
Signature	Print Title & Name	Date

Reviewer: _____	_____	_____
Signature	Print Title & Name	Date